

M2.2 Rules of Evidence – Hearsay RASE

Learner Instructions

The accused is charged with assaulting his step-daughter. The complainant's mother had observed bruising on her daughter's legs and had taken her to see the family doctor for an examination at about 9am. The doctor observed injuries consistent with the allegation of assault. After seeing his last patient of the day, the doctor telephoned DHS to report his findings to a Child Protection worker. The doctor died the same evening in a car accident, without leaving any other record of his examination of the complainant.

Prior to the hearing, you have served defence with a notice to adduce hearsay evidence pursuant to s 67(1) of the *Evidence Act 2008*.

Defence object to the Child Protection worker giving evidence of what the doctor said on the basis that it is hearsay.

The magistrate asks you, "Is this evidence hearsay, if so, how is it admissible?"

Prepare a submission in response (IRAC format preferred).